



SPONSOR: Sen. Sturgeon & Rep. K. Williams
Sen. Walsh; Reps. Berry, Bolden, Gorman, Morrison

DELAWARE STATE SENATE
153rd GENERAL ASSEMBLY

SENATE BILL NO. 223

AN ACT TO AMEND TITLE 14 OF THE DELAWARE CODE RELATING TO THE RETENTION OF PERSONNEL RECORDS.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

Section 1. Amend § 122, Title 14 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows:

§ 122. Rules and regulations.

(b) The Department shall ~~prescribe~~ adopt all of the following rules and regulations:

(13) ~~Assuring the permanent maintenance for a period of not less than the number of years required by the Delaware Public Archives of the personnel records of all employees of all the school districts of the~~ and charter schools in this State, including those the records of employees who terminate employment in the district. These records shall include, but not be limited to, whose employment has terminated. These regulations must require all of the following:

a. The retention of all of the following for each employee:

1. All annual salaries and sick salaries.

2. Sick leave and vacation information; information.

b. The length of time that these records must be retained, which must be for a period that equals or exceeds the number of years required by the Delaware Public Archives.

SYNOPSIS

This Act updates the requirements for Department of Education's regulations for personnel records to include charter schools.

This Act also makes technical corrections to conform existing law to the standards of the Delaware Legislative Drafting Manual.

Author: Senator Sturgeon